

21PSCV00778 21PSCV00778

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Case Number: 21PSCV00778 Hearing Date: September 24, 2026 Dept: O

Tentative Ruling

MOTION TO SET

ASIDE DEFAULT, PER CCP § 473.5 & CIV 1788.61 is DENIED.

Background

This is a

breach of contract case wherein the plaintiff alleges there is an unpaid sum of \$50,000 on the defendant's account.

On September

24, 2021, Plaintiff Persolve Legal Group, LLP (the successor in interest to the original lender, Compass bank) filed suit against Defendant James Stewart for:

1. Breach
of Contract

2. Money
Lent

3. Account
Stated

On May 30,
2023, default was entered.

On July 18,

2023, default judgment was entered in the sum of \$72,591.33 (comprised in part of \$50,000 in damages plus \$21,008.21 in interest at an annual rate of 8%, as alleged in the complaint).

On May 5,
2026, the instant motion was filed.

On September
15, 2026, an opposition was filed. (The court continued the hearing to allow for service of the motion upon newly named Plaintiff's counsel.)

On September
18, 2026, a reply was filed.

Discussion

As set forth in the motion, Defendant only became aware of this proceeding in March 2026 when he was attempting to conduct a refinance of his current residential mortgage and he was notified that an Abstract of Judgment for this matter had been recorded with the Los Angeles County Recorder's Office. (Motion p. 3.) More specifically, Defendant argues "[d]uring this time period (2021 and 2022) Defendant did not reside at any of the listed addresses where service was allegedly attempted. Further, Defendant was not in communication with any of the occupants of the listed addresses." (Motion p. 3:10-13, emphasis added.)^[1] He argues that "[a]t that time and continuing to the present, Defendant resided at the following address: 10955 Willow Lane, Adelanto, CA 92301." (Motion p. 3.)^[2] With that, Defendant seeks to set aside the default judgment based upon CCP section 473.5. (Motion p. 1:27-28.)^[3]

But

the opposition raises a persuasive point: if none of the five addresses was ever his why were all five connected to him through Plaintiffs public-records investigation — and why that investigation show him owning real property at three of them? Notably, the narrative somewhat changes in Reply. Defendant concedes that Plaintiff also attempted service by mail to P.O. Box 2086 Pomona, CA 91769. His utility bills, attached as Exhibit "A" to his own motion, are addressed "James Stewart, PO Box 2086, Pomona, CA 91769" — the very address Plaintiff used. In Reply "Defendant does not deny that this mailing address was used by him. However, Defendant denies receiving notice or service of any court documents at that address." (Reply p. 4:3-6.) But that is a conclusive, blanket denial of notice.

The question/point is appropriate considering the governing law. The only question is not, as framed by Defendant, when Defendant “became aware of this proceeding and the default judgment entered against him” (Motion p. 3:10-13; see also Stewart Decl. P2.). As argued by Plaintiff in opposition and not meaningfully addressed in reply, CCP section 473.5 does not only require lack of actual notice[4] but that the “notice of motion to set aside a default or default judgment and for leave to defend the action ...shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect.” (emphasis added; see also subd. (C) [also requiring that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect.”], emphasis added.) And Civil Code section 1788.61 also requires that the motion be brought within a reasonable time.

But when his own evidence establishes that Plaintiff directed notice to a mailing address he used and there is no evidence/declaration that he did not check said PO Box, then the court questions the credibility of Defendant's statements about the lack of actual notice and lack of neglect.[5]

All in all, as noted in opposition, where the moving party's declaration fails to affirmatively establish that the lack of notice was not caused by his own avoidance or inexcusable neglect — or where it rests on conclusory statements, relief under section 473.5 is properly denied. (See Opp. p. 6, citing *Anastos v. Kuo Chen Lee* (2004) 118 Cal.App.4th 1314, 1318-1319.)

The motion fails on another ground: a motion under section 473.5 requires a showing of a meritorious defense to the action. (Code Civ. Proc., § 473.5(b).) As argued by Plaintiff, Defendant's proposed Answer (Exhibit “C”) consists of a general denial an twenty-two form affirmative defenses — comparative negligence, assumption of risk, unavoidable accident, act of God, etc. Defendant does not identify a single specific, fact-based defense the underlying debt: he does not deny opening the account, does not deny the balance, and does no assert payment. (Opp. p. 7.) In reply, Defendant blanketly avers the foregoing is enough because he “denies each, every and all of the allegations...” and that the “discovery process” will

provide additional information.

Conclusion

Based thereon, the motion is denied.

[1] This wording suggested that Defendant may own the property as why else a party would need to be in contact/communicate with individuals residing at the property. And in reply, Defendant states that he does own three of the properties (20823 Fuerte Dr., Walnut, CA 91789; 551 Broderick Ct., Hemet, CA 92544; 880 Streamview St., Walnut, CA 91789 [previously owned].)

[2] Service was attempted at a Willow Lane address, but at 4070 Weeping Willow Ln in Fontana.

[3] As argued in opposition, Defendant's motion does not attack the publication order. He proceeds solely under section 473.5, which presupposes that service was properly affected but did not reach him. The validity of the publication order therefore stands unchallenged. (Opp. p. 4.) In Reply, however, Defendant argues publication was improper because publication of the summons occurred in an entirely different county than the county where Defendant resides.

[4] '[A]ctual notice' in section 473.5 'means genuine knowledge of the party litigant....' [Citation.]" (Tunis v. Barrow(1986) 184 Cal.App.3d 1069, 1077.)

[5] See Hodge Sheet Metal Products v. Palm Springs Riviera Hotel (1961) 189 Cal.App.2d 653, 658 ["The weighing of the veracity of the affidavit was in the province of the trial court."]; see also McClaim v. Kissler (2019) 39 Cal.App.5th 399 [regarding trial court's province to determine credibility of the declarant; see also Solv-All v. Sup. Ct. (2005) 131 Cal.App.4th 1003, 1008 [same].)